

25CHCV00752 25CHCV00752

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-06-30

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Case Number: 25CHCV00752 Hearing Date: June 30, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JUNE 29, 2026

MOTION FOR

ATTORNEY FEES

Los Angeles Superior Court Case # 25CHCV00752

Motion Filed: 1/20/26

MOVING PARTY: Plaintiff Jennae Peoples ("Plaintiff")

RESPONDING PARTY: Defendant General Motors LLC

("Defendant")

NOTICE: OK

RELIEF REQUESTED: An order granting Plaintiff her attorney fees and costs in the amount of \$31,920.59.

TENTATIVE RULING: The motion is granted in part. Plaintiff is awarded \$15,795.24 in attorney fees and costs.

BACKGROUND

Plaintiff brings this action under the Song-Beverly Consumer Warranty Act (Civil Code § 1790 et seq.) for a vehicle she purchased on 10/22/22, for which Defendant issued the manufacturer's express warranty. (Compl. ¶¶ 2–3, 8.) Plaintiff alleges that the subject vehicle “was delivered to Plaintiff with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to, condition causing the driver side half-shaft to disengage from the transmission, causing a loss of propulsion and/or a loss of mechanical park, rear license plate lamp is inoperable, exhaust leak at the flex pipe weld, the front exhaust pipe bracket separates, and causing a hole and increased noise, lacks power and has difficulty accelerating, and leaking oil from the right corner of the front engine cover and causing a burning smell.” (Id. at ¶ 9.)

On 2/28/25, Plaintiff filed her complaint, alleging against Defendant the following causes of action: (1) Violation of Song-Beverly Consumer Warranty Act; (2) Breach of Implied Warranties Pursuant to Song-Beverly; (3) Failure to Promptly Repurchase Product Pursuant to Song-Beverly; and (4) Failure to Commence Repairs Within a Reasonable Time and to Complete Them Within 30 Days Pursuant to Song-Beverly. On 4/7/25, Defendant filed its answer.

On 10/9/25, the parties executed a settlement agreement, settling entire lawsuit. (Ex. D to Decl. of Ashkan Reza.)

On 10/13/25, Plaintiff filed a Notice of Conditional Settlement of the entire case.

On 1/20/26, Plaintiff filed the instant motion and her Memorandum of Costs. On 5/15/26, Defendant filed its opposition. On 5/26/26, Plaintiff filed an untimely reply. On 5/28/26, the Court continued the instant motion for supplemental briefing, “as Plaintiff failed to provide the Court with any evidence of the time incurred in the case.” (5/28/26 Min. Order.) On 6/10/26, Plaintiff filed her supplemental brief. On 6/23/26, Defendant filed its supplemental opposition.

ANALYSIS

A.

Right to Recovery

An award of

attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b); 1033.5, subd. (a)(10).) Here, the Song-Beverly Act authorizes a buyer “to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)

Moreover,

Plaintiff bases the instant motion on the parties’ settlement agreement, wherein the parties agreed that “reasonable attorneys’ fees, costs, and expenses pursuant to subdivision (d) of Section 1794 of the Civil Code shall be determined by the court by way of a noticed motion. Defendant agrees the prevailing party for purposes of said fee motion.” (Ex. D to Reza Decl., ¶ 1.)

Based on

the foregoing, the Court finds that the instant motion is authorized both by contract and statute.

B.

Attorney Fees Incurred

A buyer prevailing

under the Song-Beverly Act may recover “reasonable” attorney fees and costs as determined by the Court. (Civ. Code § 1794, subd. (d).) In determining a reasonable fee award, the Court begins with the lodestar method of calculation, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Karton v. Ari Design & Construction, Inc. (2021) 61 Cal.App.5th 734, 744; PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095–1096.)

Here,

Plaintiff seeks to recover \$22,219.50, encompassing 67.4 hours of her attorneys’ time, billed at the following rates:

Name

Title

Hourly

Rate

Hours

Total

Lauren

Warwick

Attorney

\$375.00

33.1

\$12,412.50

Ashkan Reza

Attorney

\$575.00

11.9

\$6,842.50

Michelle Nguyen

Case Manager/Legal Assistant

\$140.00

9.8

\$1,372.00

Dianne Martin

Case Manager/Legal Assistant

\$125.00

6.7

\$837.50

Lawrence Cavazos

Case Manager

\$95.00

2.9

\$275.50

Donya Akradi

Law Clerk

\$258.00

1.0

\$258.00

Adriana Hernandez

Case Manager

\$95.00

1.7

\$161.50

Mailei Bennett

Trial Paralegal

\$200.00

0.3

\$60.00

Total

67.4

\$22,219.50

(Supp. Reza Decl. ¶ 8.)

1. Counsel's

Hourly Rate

When

determining a reasonable hourly rate, courts consider whether the stated rates “are within the range of reasonable rates charged by and judicially awarded [to] comparable attorneys for comparable work.” (Children's Hosp. & Med. Ctr. v. Bonta (2002) 97 Cal.App.4th 740, 783.)

Here, Plaintiff

asserts that the rates charged by her attorneys are commensurate with the experience and skill of the attorneys involved, and have been approved by courts in the past. (Pl.'s Mot. 8:4–9:2; Reza Decl. ¶¶ 22–36.) In opposition, Defendant argues that the Court should apply rates from the “2021 Real Rate Report: The Industry's Leading Analysis of Law Firm Rates, Trends, and Practices” (the “Real Rate Report”), and reduce counsel's hourly rates to \$252.00 per hour for partners and \$231.00 per hour for associate attorneys. (Def.'s Opp. 5:24–28.)

The Court

finds that Plaintiff has sufficiently shown that her attorneys' hourly billing rates are commensurate with their experience, and fall within the range of reasonable rates charged by attorneys in similar cases. Accordingly, the Court declines to reduce Plaintiff's counsel's hourly billing rates.

2. Hours

Expended

Plaintiff

seeks to recover attorney fees for the 67.4 hours expended by her attorneys on this matter, totaling \$22,219.50. Plaintiff proffers an itemized list of time entries detailing their attorneys' work on this matter. (Ex. A to Supp. Reza Decl.)

Defendant

challenges the following specific entries in Plaintiff's attorneys' proffered time log: (1) clerical tasks; (2) time billed in connection with the instant fee motion; (3) time billed in connection reviewing Defendant's initial disclosures; (4) time billed in connection with Plaintiff's deposition; and (4) time billed for mediation.

a.

Clerical Tasks

Defendant

argues that throughout counsel's billing records, there are entries for routine case management or clerical tasks that are not recoverable. (Def.'s Supp. Opp. 2:25–26.) “RLG case managers repeatedly billed Plaintiff throughout the invoice for scheduling, uploading, and serving. As such, GM respectfully urges the Court to deduct from the lodestar amount all time billed by case managers Michelle Nguyen, Dianne Martin, Lawrence Cavazos, and Adriana Hernandez.” (Id. at 3:14–17.) Defendant also challenges 1.3 hours of Plaintiff's attorneys' time (0.7 hours by LW, 0.6 hours by AR) as purely clerical. (Id. at 3:18–27.)

The Court finds

that Plaintiff's billing statement reflects 2.6 hours (1.3 hours by MN, 0.2 hours by DM, 0.5 hours by AH, and 0.6 hours by AR) incurred for purely administrative tasks. The Court finds that the above fees were not reasonably incurred, and therefore reduces the fee demand for these associated

tasks by 2.6 hours for a total reduction of \$599.50.

b.

Fee Motion

Defendant

further argues that the 7.6 hours (incurred by AR) incurred in bringing the instant motion are unreasonable. (Def.'s Supp. Opp. 4:9–14.) Defendant argues that “a fee motion of this nature should not take longer than three to four hours for an attorney with 12-years of experience with claims brought under the SBA and other consumer protection statutes.” (Id. at 4:11–13 [internal quotations omitted].) Based on the foregoing, the Court reduces the time actually incurred for these tasks by 4.8 hours for a total reduction of \$2,760.00.

c.

Initial Disclosures

Defendant

further argues that the 11.8 hours (incurred by LW) incurred in reviewing Defendant's initial disclosures are unreasonable. (Def.'s Supp. Opp. 4:15–21.) Defendant argues that “this is excessive as the majority of documents produced by GM in this matter are the same documents produced to RLG in hundreds of other matters. Moreover, the service history reflects that the subject vehicle presented for just five service visits.” (Id. at 4:19–21.) Based on the foregoing, the Court reduces the time actually incurred for these tasks by 5.9 hours for a total reduction of \$2,212.50.

d.

Plaintiff's Deposition

Defendant

further argues that the 4.0 hours (incurred by LW) incurred in preparing for and completing mediation of this matter are unreasonable. (Def.'s Supp. Opp. 5:1–8.) Defendant argues that “this is excessive as the deposition was an initial deposition under AB 1755 procedures that lasted less than two hours.” (Id. at 4:19–21.) Based on the foregoing, the Court reduces the time actually incurred for preparing for Plaintiff's deposition by 1.7 hours for a total reduction of \$637.50.

e.

Mediation

Defendant

further argues that the 3.7 hours (incurred by LW) incurred in preparing for Plaintiff's deposition are unreasonable. (Def.'s Supp. Opp. 4:26–27.) Defendant argues that “the mediation on September 18, 2025, was a block mediation consisting of several matters, not just this one matter. Billing the entire 4 hours to one matter is not only excessive but effectively asks GM to pay several times over for the same mediation session.” (Id. at 5:5–8.) Based on the foregoing, the Court reduces the time actually incurred for attending the mediation by 2.0 hours for a total reduction of \$750.00.

C.

Multiplier

“Once the lodestar has been calculated, the second step is to apply any positive or negative multipliers. The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334, 351 [internal quotations omitted].) “Perhaps the most common multiplier applied, at least where a plaintiff prevails, is a modifier for the contingent nature of the representation.” (Ibid.) Whether a multiplier is applied to adjust the lodestar amount based on the contingent nature and risk associated with the action and other factors, such as degree of skill required and ultimate success achieved is within the discretion of the trial court.

Here,

Plaintiff argues that she is entitled to recover a 0.3 multiplier enhancement because “this case required Plaintiff's Counsel to decipher the various issues that the Vehicle suffered from and plan out Plaintiff's discovery process. The Vehicle at issue contained several different types of defects.” (Pl.'s Mot. 13:6–8.) Plaintiff further asserts that “Plaintiff's Counsel achieved an excellent outcome for Plaintiff, which included a favorable settlement amount to Plaintiff and GM's agreement to pay Plaintiff's attorney fees and costs by motion. This is by any measure an outstanding result.” (Id. at 13:25–27.)

Defendant

argues in opposition that the record “reflects that this was a routine lemon-law matter that resolved promptly under California's fee-shifting scheme, presenting little to no contingency risk.” (Def.’s Opp. 6:26–28.) Defendant further argue that Plaintiff’s counsel’s “rates already reflect the contingent nature of work.” (Id. at 7:11.)

Based on

the foregoing, the Court finds that a multiplier enhancement is not warranted in this case. While Plaintiff ultimately prevailed, the action appears to have been a relatively straightforward Song-Beverly case. As such, the Court finds the lodestar fee award sufficient to compensate Plaintiff’s counsel.

D.

Costs Incurred

If the

charges listed on a submitted memorandum of costs appear to be proper charges on their face, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774–776.)

Here, Plaintiff

asserts that she incurred costs and expenses totaling \$535.24, which encompasses: (1) \$485.24 in filing and motion fees; and (2) \$50.00 in process server fees. (1/20/26 Mem. of Costs.) As Defendant does not challenge any of Plaintiff’s claimed costs, the Court finds them proper and reasonably incurred.

Based on

the foregoing, the Court finds it reasonable to award Plaintiff \$15,795.24 in attorney fees and costs, as outlined below:

Name

Title

Hourly

Rate

Hours

Total

Lauren Warwick

Attorney

\$375.00

23.5

\$8,812.50

Ashkan Reza

Attorney

\$575.00

6.5

\$3,737.50

Michelle Nguyen

Case Manager/Legal
Assistant

\$140.00

8.5

\$1,190.00

Dianne Martin

Case Manager/Legal
Assistant

\$125.00

6.5

\$812.50

Lawrence Cavazos

Case Manager

\$95.00

2.9

\$275.50

Donya Akradi

Law Clerk

\$258.00

1.0

\$258.00

Adriana Hernandez

Case Manager

\$95.00

1.2

\$114.00

Mailei Bennett

Trial Paralegal

\$200.00

0.3

\$60.00

Subtotal

50.4

\$15,260.00

Costs

\$535.24

Total

\$15,795.24

CONCLUSION

The motion is granted in part. Plaintiff is awarded \$15,795.24 in attorney fees and costs.